



June 8, 2023

BY ELECTRONIC FILING

Marlene H. Dortch
Secretary
Federal Communications Commission
45 L Street, N.E.
Washington, DC 20554

Re: *ICFS File Nos. SAT-MOD-20070919-00129 and SAT-MOD-20230207-00022*

Dear Ms. Dortch:

Any remaining rights DISH had to operate its DBSD satellite in the United States expired last month, fifteen years after being authorized for—yet failing to ever provide—service in the United States.¹ To avoid this straightforward conclusion, DISH makes the remarkable claim that the Commission has reversed its longstanding policy, all without ever announcing the change, to make the United States possibly the only country in the world that does not require operators with market access to renew their authorization.² In effect, DISH argues that the Commission gives foreign licensees like DBSD more favorable regulatory treatment than its domestic licensees that must renew their licenses every fifteen years. Even more striking, DISH makes this argument after a years-long debate in the C-band proceeding, where the Commission reaffirmed that it will treat a market access authorization as equivalent to a domestic license. DISH's position is untenable and the Commission must recognize that DBSD's authorization has expired.

DISH does not cite a single Commission decision, rule, or policy to support its proposition. Nor could it. The Commission has made clear that it will treat foreign authorized systems in the same manner as its own licensees for both the benefits of Commission policies and their obligations. Yet DISH would have the Commission reject its policy, making the United States a global regulatory outlier with policies that directly disadvantage domestic systems and undermine the Commission's own oversight of satellite operations. Moreover, DISH's position would make no sense. The Commission's goals in reviewing licenses every fifteen years to determine whether they remain in the public interest would be thwarted if foreign operators like DBSD were allowed to squat on spectrum in the United States indefinitely, even as they fail to deliver the service required by the Commission's authorization.³

¹ See *ICO Satellite Services G.P.*, 20 FCC Rcd. 9797 (IB 2005).

² See Letter from Jeffrey H. Blum to Marlene Dortch, ICFS File Nos. SAT-MOD-20070919-00129 and SAT-MOD-20230207-00022 (May 11, 2023) ("DISH Letter").

³ See, e.g., Application to Modify Letter of Intent Authorization of ICO Satellite Services G.P., ICFS File No. SAT-MOD-20050110-00004, et al., at 23 (Jan. 10, 2005) (grant of application "will enable ICO to provide mobile satellite services to the United States by the 2 GHz MSS in service date of July 17, 2007").

The Commission began its policy of equal treatment with the very framework it adopted for granting satellite market access in *DISCO II*.⁴ As the Commission noted in a later proceeding:

The Commission found in *DISCO II* that it has authority to impose all its rules and policies, including system implementation requirements on all systems serving the United States, including foreign-licensed satellites approved to serve customers in the United States under *DISCO II*.⁵

The Commission has implemented this principle consistently over the last twenty-five years. Most recently, in reallocating C-band spectrum to make room for a new mobile service, the Commission removed incumbent satellite systems from a portion of the band by exercising its authority to modify “any station license or construction permit.”⁶ In doing so, the Commission was clear it would “accord to grants of market access the same protections in this regard that we accord to Commission licensees.”⁷

Significantly, the Commission’s approach has directly benefited the very 2 GHz MSS system at issue here. After several of the original MSS authorizations to use the 2 GHz band were returned to the Commission, two operators—both predecessors of the 2 GHz MSS operators now wholly owned by DISH—sought to have the Commission exercise its modification authority to extend the operators’ market access authorizations to include the returned spectrum.⁸ DBSD’s predecessor argued that “the Commission has ample authority under Section 316(a) of the Communications Act of 1934, as amended, to modify ‘[a]ny station license or construction permit . . . if, in the judgment of the Commission such action will promote the public interest, convenience, and necessity.’”⁹ The other 2 GHz MSS operator—that DISH would also later acquire—made the same argument.¹⁰ Thus, the two 2 GHz systems that DISH currently holds directly benefitted from and enthusiastically supported the Commission’s policy of treating U.S. and non-U.S. systems the same under its rules.

Yet, DISH conveniently disregards the very regulatory parity that DBSD sought and benefited from. DISH now claims that it should get the benefits of being a domestic licensee, but should be able to avoid the attendant obligations like license durations and periodic reauthorization requirements. DISH unabashedly argues that the Commission gives preferential treatment to foreign satellite systems by authorizing indefinite access to the U.S. market, while these systems are subject only to the discretion of their licensing jurisdictions.¹¹ But that cannot be true.

⁴ See *Amendment of the Commission’s Regulatory Policies to Allow Non-U.S. Licensed Space Stations to Provide Domestic and International Satellite Service in the United States*, 12 FCC Rcd. 24094 (1997) (“*DISCO II*”).

⁵ *Amendment of the Commission’s Space Station Licensing Rules and Policies*, 19 FCC Rcd. 12637, ¶ 67 (2004).

⁶ 47 U.S.C. § 316(a)(1).

⁷ *Expanding Flexible Use in the 3.7-4.2 GHz Band*, 35 FCC Rcd. 2343, ¶ 131 (2020) (“*C-Band Order*”).

⁸ See *Use of Returned Spectrum in the 2 GHz Mobile Satellite Service Frequency Bands*, 20 FCC Rcd. 19696 (2005).

⁹ Comments of ICO Satellite Services G.P., IB Docket No. 05-220, at 3 (July 13, 2005) (alterations in original) (quoting 47 U.S.C. § 316(a)).

¹⁰ See Reply Comments of TMI and TerreStar, IB Docket No. 05-220, at 1 (July 25, 2005).

¹¹ See DISH Letter at 1-2.

Providing foreign operators with endless access to the U.S. market would exacerbate incentives for satellite operators to license their systems overseas. Not only would this place U.S.-licensed operators at a further competitive disadvantage by introducing a new regulatory loophole for foreign operators, it would also needlessly restrict the Commission's ability to exercise effective oversight over many systems authorized to provide service within the United States.

To cloud the matter further, DISH conflates its foreign license to operate the DBSD satellite with its now-expired authorization to access the United States market. While DISH is correct that foreign-licensed satellites receive a market access authorization in accordance with Section 25.137 of the Commission's rules,¹² the Commission maintains the authority both to have these authorizations expire after a specified period and to require extension requests to ensure foreign-licensed systems are satisfying their obligations. Exercising this authority would not raise issues of national comity or require separate and duplicative licenses, as DISH claims.¹³

In fact, the conduct of other national regulators demonstrates that comity is not an issue. While SpaceX now has market access in nearly ninety countries worldwide, it is not aware of a *single* country that follows DISH's preferred policy of indefinite market access. Rather, many take the contrary position by imposing additional burdens on foreign-licensed systems. The Commission assuredly did not deviate so drastically from global practice, particularly without expressly indicating its decision through a rulemaking.

But even if DBSD's market access authorization had not expired, DBSD's access rights terminated when DBSD failed to operate an MSS service in the United States for years. Under Section 25.161 of the Commission's rules, any space station authorization "shall be automatically terminated" if the station "[is] not operational for more than 90 days."¹⁴ The rule is clear that this operation requirement applies to all space station authorizations, regardless of their licensing jurisdictions. Thus, DBSD's authorization effectively terminated in 2012, when the Commission acknowledged that "DBSD [had] never offered either commercial satellite or terrestrial service."¹⁵ Over a decade later, DBSD has still failed to send a single packet of information to a commercial MSS earth station in the United States. Accordingly, while the DBSD authorization should have terminated over 4,000 days ago, it certainly has by now.

¹² See 47 C.F.R. § 25.137.

¹³ See DISH Letter at 1 (citing *DISCO II* ¶ 188).

¹⁴ 47 C.F.R. § 25.161(c).

¹⁵ *Service Rules for Advanced Wireless Services in the 2000-2020 MHz and 2180-2200 MHz Bands*, 27 FCC Rcd. 16102, ¶ 10 (2012).

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June 8, 2023
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Sincerely,

/s/ David Goldman

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